
DISSENT

GILMAN, Circuit Judge, dissenting.

I. INTRODUCTION

In holding that Banuelos-Jimenez’s state-law conviction matches the Immigration and Nationality Act’s (INA’s) definition of a crime of violence, the majority (1) fails to distinguish between the threat of *injury* as opposed to the threat of *force*, and (2) relies upon the faulty assumption that the *apprehension* of injury can result *only* from the threat of injury. The majority also overlooks the key point that the Arkansas statute under which Banuelos-Jimenez was convicted—which has not previously been examined by the federal courts with respect to its application to the INA’s crime-of-violence definition—has been interpreted by courts in Arkansas to apply in scenarios that do not satisfy that definition. *See P.J. v. State*, 578 S.W.3d 307, 311-12 (Ark. Ct. App. 2019); *Rodgers v. Bryant*, 301 F.Supp. 3d 928, 935 (E.D. Ark. 2017). I therefore respectfully dissent.

II. DISCUSSION

A. The majority fails to distinguish between the threat of *injury* as opposed to the threat of *force*, and relies upon the faulty assumption that the *apprehension* of injury can result *only* from the threat of injury

Banuelos-Jimenez was convicted under a state statute prohibiting a person from “purposely creat[ing] apprehension of imminent physical injury to a family or household member.” Ark. Code Ann. § 5-26-309. Because the statute requires only the *apprehension* of imminent physical injury, rather than physical injury in fact, the use of physical force is not necessary for a conviction. *See id.* Nor does the plain text of the statute suggest that the attempted or threatened use of physical force is an element of the offense. *See id.* As long as the defendant (with or without the use of physical force) purposefully places a family or household member in apprehension of imminent physical injury (whether or not threatened to be inflicted by the defendant himself), then he may be convicted under Ark. Code Ann. § 5-26-309.

Although some of the statutes at issue in the cases relied on by the majority are worded similarly to Banuelos-Jimenez’s statute of conviction, the relevant state courts have specifically construed those statutes to match the INA’s crime-of-violence definition. The same cannot be said for the Arkansas statute at issue in this case.

In *United States v. Mitchell*, 743 F.3d 1054 (6th Cir. 2014), for example, our court found that “the commission of a robbery through fear, which in Tennessee reduces to the fear of bodily injury *from physical force offered or impending*, directly corresponds to [18 U.S.C.] § 924(e)(2)(B)(i)’s ‘use, attempted use, or threatened use of physical force.’” 743 F.3d at 1059 (emphasis added) (quoting 18 U.S.C. § 924(e)(2)(B)(i)). The Tennessee statute, as interpreted by the courts of that state, thus requires that the defendant intentionally create in the victim an apprehension of bodily injury specifically through the use or threatened use of physical force, necessarily satisfying the INA’s crime-of-violence definition.

United States v. Fuller-Ragland, 931 F.3d 456 (6th Cir. 2019), is similarly distinguishable for reasons that the majority itself identifies. In that case, “Michigan law required [that] ‘the act causing the victim to be put in fear—however slight—must be capable of causing physical pain or injury to another person.’” Majority Op. at 4 (quoting *Fuller-Ragland*, 931 F.3d at 462). “Therefore, the underlying act *causing* the fear necessarily included at least a threat of force” *Id.* (emphasis in original). Ark. Code Ann. § 5-26-309, by contrast, does not require the victim’s apprehension to be created by an act of the defendant that is *itself* capable of causing physical pain or injury to the victim (such as, for example, throwing an object across a room near the victim’s head.)

Indeed, the elements of Ark. Code Ann. § 5-26-309 can be met simply by committing an inappropriate prank, such as intentionally shouting “fire!” in a crowded theater. The precise terms of the statute are satisfied by the defendant’s statement in the above scenario because, as the majority recognizes, “those in the theater [] fear dying in the threatened fire” and “the threat to one’s physical health is intentionally made” by the defendant. *Id.* at 7. This is so even though the defendant does not personally threaten to cause the feared harm. Rather, he creates the apprehension of imminent physical injury from an external source.

But to constitute a crime of violence under the INA, a state statute must have “as an element the use, attempted use, or threatened use of physical *force* against the person or property of another.” 18 U.S.C. § 16(a) (emphasis added). The threat of physical *injury*, unrelated to the defendant’s use of physical force, is not sufficient. See *Mathis v. United States*, 579 U.S. 500, 504 (2016) (requiring courts to consider “whether the elements of the crime of conviction sufficiently match the elements of [the federal removal provision]”). In failing to distinguish injuries that require the use of physical force from injuries that do not, the majority wrongly conflates the elements of the Arkansas statute with the elements of a crime of violence under the INA.

One need not resort to hypotheticals, however, to determine that Ark. Code Ann. § 5-26-309 is overbroad vis-à-vis the INA’s “crime of violence.” An evaluation of how courts in Arkansas have construed this and similar statutes leads to the same conclusion.

B. Arkansas courts have applied Banuelos-Jimenez’s statute of conviction to scenarios that are overbroad with respect to the INA’s definition of a crime of violence

This court is “bound by the [state supreme c]ourt’s interpretation of its criminal law.” *United States v. Burris*, 912 F.3d 386, 398 (6th Cir. 2019) (en banc). After all, “[n]either this court ‘nor any other federal tribunal has any authority to place a construction on a state statute different from the one rendered by the highest court of the State.’” *United States v. Mitchell*, 743 F.3d 1054, 1060 (6th Cir. 2014) (quoting *Johnson v. Fankell*, 520 U.S. 911, 916 (1997)). If the state’s highest court does not further illuminate the meaning of a state statute, “intermediate state appellate court decisions constitute the next best indicia of what state law is.” *Burris*, 912 F.3d at 398 (quoting *United States v. Gardner*, 823 F.3d 793, 803 (4th Cir. 2016)); see also *id.* at 401 (rejecting the government’s argument that “a few (potentially) outlier lower [state] court decisions” cannot disprove a categorical match between a state and federal statute). Whatever the merits of the decisions of our sister circuits with respect to similar statutes, the decisions of the courts in Arkansas are dispositive with respect to Ark. Code Ann. § 5-26-309. The majority’s concern that “holding that § 5-26-309(a) is not a crime of violence would create discord with another circuit,” Majority Op. at 6, is thus unwarranted.

In *P.J. v. State*, 578 S.W.3d 307 (Ark. Ct. App. 2019), the Arkansas Court of Appeals affirmed the defendant's conviction under Ark. Code Ann. § 5-13-207, which is identical to Banuelos-Jimenez's statute of conviction but for the requirement that the victim be a family or household member. *Id.* at 311. The facts leading to P.J.'s conviction were recounted by the state court as follows:

A.C. testified that a physical confrontation with P.J. ensued when P.J. grabbed her hoodie, pulled it away from her chest, and reached his hand into her bra. A.C. responded to P.J.'s actions by jerking away, pushing her hoodie back to her chest, and going home. A.C. subsequently avoided contact with P.J. as a result of this event. From A.C.'s testimony, the trial court could conclude without resort to conjecture that P.J. purposely caused in A.C. an apprehension of immediate physical injury.

Id.

The Board of Immigration Appeals (BIA) has already rejected the majority's conclusion that conduct equivalent to P.J.'s, repulsive as such behavior is, constitutes physical force. In *Matter of Dang*, 28 I. & N. Dec. 541 (BIA 2022), the BIA held that Louisiana's simple battery statute did not require physical force because the state's courts had interpreted the statute as encompassing not just "a forcible striking with the hand or stick, or the like, but includ[ing] every touching or laying hold, however trifling, of another person, or his clothes, in an angry, revengeful, rude, insolent, or hostile manner." 28 I. & N. Dec. at 550-51 & n.5 (quoting *State v. Robinson*, 549 So. 2d 1282, 1284 (La. Ct. App. 1989)). Rather, under *Dang*, physical force must either be "capable of causing physical pain or injury to another person" or "sufficient to overcome the slightest resistance." *Id.* at 544, 548-49. I see no principled basis for distinguishing between the physical force required by P.J.'s "actually grabb[ing] a woman's shirt and reach[ing] down it," see Majority Op. at 7, and the physical force required by the "touching . . . of another person . . . in an angry, revengeful, rude, insolent, or hostile manner," see *Dang*, 28 I. & N. Dec. at 550-51 n.5 (quoting *Robinson*, 549 So. 2d at 1284).

P.J.'s conviction was valid under Arkansas law because his actions intentionally created in A.C. an apprehension of imminent physical injury, even though his actions did not entail the use or threatened use of force as defined by the BIA in *Dang*. Nor did P.J.'s conduct involve the use of violent force necessary to overcome resistance by the victim, because A.C. in fact

successfully resisted: She “jerk[ed] away, push[ed] her hoodie back to her chest, and [went] home.” *P.J.*, 578 S.W.3d at 311. And precisely because these facts were sufficient to sustain a conviction under Arkansas law, the statute is overbroad with respect to the INA’s crime-of-violence definition.

The majority nonetheless asserts that P.J.’s actions must have “either caused physical injury or, at the very least threatened physical injury.” Majority Op. at 7. But in so hypothesizing, the majority inserts facts into the state-court record that simply were not present. Although such behavior is likely to be mentally injurious, there is no indication from *P.J.* that the nonconsensual sexual touching—or even similar nonconsensual touching in the future—was *physically* injurious to A.C. See *P.J.*, 578 S.W.3d at 310-11.

Similarly, in *Rodgers v. Bryant*, 301 F. Supp. 3d 928 (E.D. Ark. 2017), the court observed that Ark. Code Ann. § 5-13-207 would have been an appropriate vehicle to “address[] the actions of [an] aggressive panhandler.” *Id.* at 935. Such actions were described by the court as follows:

[A]n aggressive panhandler refused to accept “no” for an answer. After the bystander rebuffed the panhandler’s request for money, the panhandler got increasingly close to the bystander “aggressively demanding money to the point where [the bystander] felt unsafe.” Eventually, the bystander attempted to go into the business, but the panhandler “was holding the door so . . . [the bystander] had to duck under [the panhandler] to get into the business.”

Id. at 934 (first alteration added). Although the panhandler’s actions might well have purposefully created an apprehension in the bystander of imminent physical injury, the court made no mention of the use, attempted use, or threatened use of physical force in this factual scenario. See *id.*

The majority posits that, “[e]ven if the panhandler never intended actual harm to the bystander, his actions purposely created a threat of physical harm by conditioning access to a business on payment of money.” Majority Op. at 7. But the bystander’s apprehension would not necessarily have been reasonable, because she was free to simply refrain from entering the store and continue on her way. Nothing in the factual scenario presented in *Rodgers*, such as blocking

a door or repeatedly asking for money, *required* the use of violent physical force or the threat thereof.

Finally, the BIA erred in failing to consider Banuelos-Jimenez’s “argument that the conduct underlying his conviction did not amount to a threat of physical force” because the categorical approach “preclude[d its] consideration of the underlying facts of the conviction.” Adjudicators ordinarily disregard the underlying facts of a noncitizen’s conviction because they “must ‘presume that the conviction rested upon nothing more than the least of the acts criminalized’ under the state statute.” *Mellouli v. Lynch*, 575 U.S. 798, 805 (quoting *Moncrieffe v. Holder*, 569 U.S. 184, 190-91 (2013)). But adjudicators are not prohibited from reviewing the conduct underlying a noncitizen’s conviction if they tentatively conclude that the state statute is not overbroad with respect to the INA and, as here, the noncitizen puts forth his own record of conviction as additional evidence of overbreadth. *See, e.g., Gonzales v. Duenas-Alvarez*, 549 U.S. 183, 193 (2007) ([T]o find that a state statute creates a crime outside the generic definition of a listed crime in a federal statute[,]. . . . an offender, of course, may show that the statute was so applied in his own case.”); *Matter of Ferreira*, 26 I. & N. Dec. 415, 419, 421-22 (BIA 2014) (“[A] motion to terminate [immigration removal proceedings] should be granted if the respondent can . . . ‘at least point to his own case or other cases in which the [Connecticut] state courts in fact did apply the statute in the special (nongeneric) manner for which he argues.’” (final alteration in original) (quoting *Duenas-Alvarez*, 549 U.S. at 193)).

If Banuelos-Jimenez was convicted only for “screaming very excitedly” as he claims, then his record of conviction would lend further support to the notion that the use, attempted use, or threatened use of physical force is unnecessary under Ark. Code Ann. § 5-26-309. The BIA thus committed legal error in its application of the categorical approach. This error entitles Banuelos-Jimenez to have his claim heard by the BIA, using the correct legal standard, in the first instance.

The majority declines to address the BIA’s misstep. It instead suggests that Banuelos-Jimenez must have expressly threatened his partner with physical force because, “[i]n a shouting match, merely yelling at one another about the weather, the cooking, or one’s in-laws does not necessitate a threat of injury.” Majority Op. at 6. But any threat of physical force is

entirely absent from the record. The record shows only that Banuelos-Jimenez, whose testimony the Immigration Judge ultimately deemed credible, was convicted for “screaming very excitedly.” That is not a crime of violence.

Finally, I note that the Arkansas legislature has shown itself perfectly capable of narrowing the scope of conduct encompassed by a statute when it so chooses. Under Ark. Code Ann. § 5-12-102(a), for example, “[a] person commits robbery if, with the purpose of committing a felony or misdemeanor theft or resisting apprehension immediately after committing a felony or misdemeanor theft, the person *employs or threatens to immediately employ physical force upon another person.*” (emphasis added). The Arkansas legislature did not similarly narrow the scope of conduct prohibited by Ark. Code Ann. § 5-26-309. I would honor that choice.

III. CONCLUSION

For all of the foregoing reasons, I respectfully dissent.